

SYNCHRONIZATION AND MASTER USE LICENSE AGREEMENT

(For Use of a Musical Composition and Sound Recording in a Motion Picture — United States)

This Synchronization and Master Use License Agreement (this "**Agreement**") is entered into as of _____, 20____ (the "**Effective Date**"), by and between:

_____, a _____, with offices at _____ ("**Publisher**"), on behalf of the musical composition described below;

_____, a _____, with offices at _____ ("**Master Owner**"); (check the box if master use rights ARE being licensed under this Agreement; if unchecked, the master use provisions do not apply) and _____, a _____, with offices at _____ ("**Producer**").

Publisher and Master Owner are sometimes referred to collectively as "**Licensors**," and Licensors and Producer are each a "**Party**" and together the "**Parties**."

RECITALS

WHEREAS, Publisher owns and/or controls _____ % of the copyright in and to the musical composition described in Section 1 (the "**Composition**");

WHEREAS, Master Owner owns and/or controls the master sound recording of the Composition described in Section 1 (the "**Master**");

WHEREAS, Producer is producing the motion picture currently entitled "_____" (the "**Picture**") and desires to obtain the right to synchronize the Composition [and the Master] in timed relation with the Picture;

NOW, THEREFORE, in consideration of the mutual covenants herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. THE COMPOSITION AND MASTER

Item	Details
Composition Title	
Writer(s)	
Publisher(s) / Ownership Share	/
Recording Artist	
Master Owner	

Item	Details
Approximate Duration of Use	
Nature of Use	
Scene Description	

2. GRANT OF RIGHTS

2.1 Synchronization Right. Publisher hereby grants to Producer the non-exclusive, irrevocable (upon payment of the Fee) right and license to record, reproduce, and synchronize the Composition, in whole or in part, in timed relation with the Picture, and to exhibit, distribute, perform, and otherwise exploit the Composition as embodied in the Picture in the Media, throughout the Territory, for the Term (each as defined below).

2.2 Master Use Right. Master Owner hereby grants to Producer the non-exclusive, irrevocable (upon payment of the Fee) right and license to reproduce and use the Master, in whole or in part, in timed relation with the Picture, and to exhibit, distribute, perform, and otherwise exploit the Master as embodied in the Picture in the Media, throughout the Territory, for the Term.

2.3 Media. "Media" means: all media now known or hereafter devised, including without limitation theatrical exhibition; non-theatrical exhibition (e.g., airlines, ships, hotels, schools, military bases); all forms of television (free, pay, cable, satellite, subscription, and pay-per-view); all forms of home video devices (DVD, Blu-ray, and successor physical formats); all forms of digital and electronic transmission, streaming (ad-supported and subscription), downloading, and video-on-demand; and film festivals and industry screenings.

2.4 Trailers and Advertising. **OPTION A — INCLUDED:** The rights granted herein include the right to use the Composition [and Master] in **in-context** audiovisual trailers, teasers, promos, featurettes, electronic press kits, and other advertisements and publicity for the Picture, in all Media. "In-context" means substantially as the Composition [and Master] appears in the Picture. Any **out-of-context** use in trailers or advertising shall require Licensor's prior written approval and payment of an additional fee of \$ [or: to be negotiated in good faith]. **OPTION B — EXCLUDED:** No trailer or advertising use is granted hereunder; any such use shall be subject to a separate license.

2.5 Territory. "Territory" means the world; the United States, its territories and possessions; other: .

2.6 Term. "Term" means in perpetuity; a period of years from the Effective Date, with option(s) to extend as set forth in Section 4.

2.7 Limitations. The rights granted herein are limited to use of the Composition [and Master] as embodied in the Picture. No soundtrack album, phonorecord, standalone audio, ringtone, video game, remake, prequel, sequel, or merchandising rights are granted. The Composition and Master may not be used in any manner not expressly authorized herein. Producer shall not make any change to the fundamental character, lyrics, or melody of the Composition without Licensor's prior written consent, provided that Producer may

make immaterial edits (e.g., fades, edits for timing, looping) consistent with customary motion picture post-production practice.

2.8 Public Performance. Public performance of the Composition as embodied in the Picture in the United States by television and other media whose performances are licensed by ASCAP, BMI, SESAC, or GMR is subject to those organizations' licenses with such media outlets. Theatrical exhibition of the Picture in the United States shall not require any additional performance fee to Publisher. Performances outside the United States are subject to clearance by applicable local performing rights societies in accordance with their customary practices.

3. CONSIDERATION

3.1 Fee. In full consideration of the rights granted herein, Producer shall pay:

- To Publisher, a one-time synchronization fee of \$ _____ ; and
- To Master Owner, a one-time master use fee of \$ _____

(collectively, the "**Fee**"), payable within _____ days after the later of (a) full execution of this Agreement, and (b) receipt of an invoice and completed IRS Form W-9 [or W-8, as applicable] from each Licensor. The license granted herein is conditioned upon payment of the Fee in full.

3.2 Most Favored Nations. (OPTIONAL — check if applicable) The Fee payable to Publisher and Master Owner shall be on a most-favored-nations basis with each other [and with all other licensors of musical compositions and masters used in the Picture on a per-use, per-duration basis]. If Producer pays any such other party at a higher rate for a comparable use, the Fee hereunder shall be increased to match, and the difference paid promptly.

3.3 No Royalties. Except as expressly set forth herein and subject to Section 2.8, the Fee is a one-time flat fee, and no additional royalties, residuals, or reuse fees shall be payable in connection with the exploitation of the Picture in the licensed Media.

4. OPTIONS [OPTIONAL — DELETE IF TERM IS PERPETUITY]

(check if applicable) Producer shall have _____ consecutive option(s) to extend the Term for additional period(s) of _____ years each, exercisable by written notice and payment of \$ _____ per option period, delivered prior to expiration of the then-current Term.

5. CREDIT

Provided the Composition [and Master] is used in the Picture as released, Producer shall accord credit in the end titles of the Picture, in substantially the following form, in size and placement consistent with other music credits:

" _____ "

Written by _____

Published by _____ (_____)

Performed by _____

Courtesy of _____

All other aspects of such credit shall be at Producer's discretion. No casual or inadvertent failure to accord credit shall constitute a breach of this Agreement, provided that Producer shall use commercially reasonable efforts to prospectively cure any such failure on future prints and copies following written notice.

6. CUE SHEETS

Producer shall prepare and deliver to Publisher, and file with the applicable performing rights organizations, a music cue sheet for the Picture within _____ days after the first public exhibition of the Picture, accurately reflecting the title, writers, publishers, performing rights affiliations, usage type, and timing of the Composition as used in the Picture.

7. NO OBLIGATION TO USE

Nothing herein obligates Producer to use the Composition or Master in the Picture, or to produce, release, distribute, or exploit the Picture. If the Composition and Master are not used in the Picture as initially released, this license shall be deemed terminated; provided that the Fee, once paid, is non-refundable [unless otherwise agreed in writing].

8. REPRESENTATIONS AND WARRANTIES

8.1 By Publisher. Publisher represents and warrants that: (a) it owns or controls the percentage of the Composition set forth in Section 1 and has the full right, power, and authority to enter into this Agreement and grant the rights herein as to such share; (b) neither the Composition nor its use as authorized herein will infringe upon or violate the copyright, or any other right, of any third party; and (c) it shall be solely responsible for any payments due to the writers and any co-publishers of the Composition arising from the Fee paid to Publisher.

8.2 By Master Owner. Master Owner represents and warrants that: (a) it owns or controls the Master and has the full right, power, and authority to enter into this Agreement and grant the rights herein; (b) it has obtained (or shall be solely responsible for) all consents, clearances, and payments required in connection with the Master and its use as authorized herein, including without limitation artist consents and royalties, producer royalties, session musician payments, and any payments required under applicable collective bargaining agreements (including AFM and SAG-AFTRA), and any applicable re-use fees; and (c) neither the Master nor its use as authorized herein will infringe upon or violate the rights of any third party, including rights of publicity or privacy.

8.3 By Producer. Producer represents and warrants that: (a) it has the full right, power, and authority to enter into this Agreement; and (b) it will not use the Composition or Master except as expressly authorized herein.

8.4 Ownership Share; Co-Publishers. If Publisher controls less than 100% of the Composition, the rights granted herein are limited to Publisher's share, Producer is responsible for clearing the remaining share(s) from the applicable co-publisher(s), and the Fee reflects only Publisher's share.

9. INDEMNIFICATION

Each Party (the "**Indemnifying Party**") shall indemnify, defend, and hold harmless the other Parties and their respective parents, subsidiaries, affiliates, licensees, successors, and assigns, and their respective

officers, directors, employees, and agents, from and against any and all third-party claims, damages, liabilities, losses, costs, and expenses (including reasonable outside attorneys' fees) arising out of any breach or alleged breach of the Indemnifying Party's representations, warranties, or agreements hereunder. The indemnified party shall give prompt written notice of any claim, and the Indemnifying Party may assume the defense thereof with counsel reasonably acceptable to the indemnified party; the indemnified party may participate with counsel of its own choosing at its own expense. No claim may be settled in a manner that imposes liability or admission on an indemnified party without its prior written consent.

10. REMEDIES

Licensors' rights and remedies for any breach of this Agreement by Producer shall be limited to an action at law for money damages, and in no event shall Licensor be entitled to rescind or terminate this Agreement or the rights granted herein, or to seek or obtain injunctive or other equitable relief enjoining or restraining the production, distribution, exhibition, advertising, or exploitation of the Picture.

11. ASSIGNMENT

Producer may assign this Agreement, in whole or in part, to any parent, subsidiary, or affiliated entity, to any successor in interest, or to any entity acquiring rights in the Picture (including financiers and distributors), provided that Producer shall remain secondarily liable for payment of the Fee unless the assignee is a major studio, streaming service, or financially responsible party that assumes Producer's obligations in writing. Licensor may assign its right to receive payment hereunder but may not otherwise assign this Agreement in a manner that diminishes Producer's rights.

12. NOTICES

All notices shall be in writing and delivered by personal delivery, reputable overnight courier, certified mail (return receipt requested), or email (with confirmation of receipt) to the addresses set forth above, or such other address as a Party may designate by notice. Notices are effective upon receipt.

13. GOVERNING LAW; DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of California New York, without regard to its conflicts of law principles. The Parties submit to the exclusive jurisdiction of the state and federal courts located in Los Angeles County, California New York County, New York. **OPTIONAL ARBITRATION ALTERNATIVE** (check if elected): Any dispute arising out of or relating to this Agreement shall be resolved by binding arbitration administered by JAMS in before a single arbitrator, and judgment on the award may be entered in any court of competent jurisdiction.

14. MISCELLANEOUS

14.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties concerning its subject matter and supersedes all prior negotiations, understandings, and agreements, whether written or oral. Any quote letters or confirmation emails are merged herein.

14.2 Amendment; Waiver. No amendment or waiver shall be effective unless in a writing signed by the Party against whom enforcement is sought. No waiver of any breach shall constitute a waiver of any other or subsequent breach.

14.3 Severability. If any provision is held invalid or unenforceable, the remaining provisions shall remain in full force and effect, and the invalid provision shall be reformed to the minimum extent necessary to render it enforceable.

14.4 No Partnership. Nothing herein creates a partnership, joint venture, agency, or employment relationship between the Parties.

14.5 Counterparts; Electronic Signatures. This Agreement may be executed in counterparts, including by electronic signature (e.g., DocuSign) and PDF exchange, each of which shall be deemed an original and all of which together constitute one instrument.

14.6 Confidentiality. (OPTIONAL — check if applicable) The financial terms of this Agreement shall be kept confidential, except as required by law, to enforce this Agreement, or as disclosed to a Party's attorneys, accountants, financiers, distributors, and business representatives on a need-to-know basis.

14.7 Survival. Sections 8, 9, 10, 13, and 14 shall survive expiration or termination of this Agreement.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

PUBLISHER:

By: _____

Name:

Title:

Date:

MASTER OWNER:

By: _____

Name:

Title:

Date:

PRODUCER:

By: _____

Name:

Title:

Date: